EXTRA ORDINARY ISSUE REGISTERED No. L-7532

The Punjab Gazette

PUBLISHED BY AUTHORITY

LAHORE WEDNESDAY JUNE 24 , 2026

PROVINCIAL ASSEMBLY OF THE PUNJAB

NOTIFICATION

June 24, 2026

No. PAP/Legis-2(129)/2026/796. The Aga Khan Properties (Succession and Transfer) Bill 2026, having been passed by Provincial Assembly of the Punjab on June 10, 2026, and assented to by Governor of the Punjab on June 23, 2026, is hereby published as an Act of Provincial Assembly of the Punjab.

THE AGA KHAN PROPERTIES (SUCCESSION AND TRANSFER) ACT 2026

ACT XLVI OF 2026

[First published, after having received the assent of the Governor of the Punjab, in the Gazette of the Punjab (Extraordinary) dated June 24, 2026.]

An

Act

to provide for automatic and undisputed succession and transfer of properties of Aga Khan to the successor of Aga Khan of the Shia Imami Ismaili Muslims in the Punjab.

It is necessary to provide for automatic and undisputed succession and transfer of properties of Aga Khan to the successor of Aga Khan of the Shia Imami Ismaili Muslims in the Punjab for ensuring the continuity of custodianship and administration of such properties without need for probate, succession certificates, or other legal processes to each successor Imam, and the matters connected therewith or ancillary thereto.

It is hereby enacted by Provincial Assembly of the Punjab as follows:

1. **Short title, extent and commencement.**– (1) This Act may be cited as the Aga Khan Properties (Succession and Transfer) Act 2026.

(2) It extends to whole of the Punjab.

(3) It shall come into force at once and shall be deemed to have taken effect on and from the 4th February 2025.

2. **Definitions.**– In the Act:

(a) "Act" means the Aga Khan Properties (Succession and Transfer) Act 2026;

(b) "Aga Khan" means the person who is recognized in accordance with the traditions of the Shia Imami Ismaili Muslims as the Imam of the Times or as the Hazar Imam of the Shia Imami Ismaili Muslims;

(c) "Board" means the Board of Revenue established under the Punjab Board of Revenue Act, 1957 (XI of 1957);

(d) "Government" means Government of the Punjab; and

(e) "property" includes all moveable and immoveable properties, rights, interests, assets, titles, shares, securities, investments, trusts, and any other property of any nature whatsoever, situated within the Province of Punjab, which are now or any time hereafter held, owned, possessed, controlled, or beneficially enjoyed by the Aga Khan in his personal, official or institutional capacity, whether directly or indirectly, including properties held through nominees, trusts, foundations, or any other legal entity, except those movable and immovable properties that are specifically excluded by the Aga Khan in accordance with the procedure specified in section 4.

3. **Automatic succession and vesting of property**.– (1) Notwithstanding anything contained in any other law for the time being in force, all properties situated within the Province of the Punjab shall, on the demise of the Aga Khan, by succession automatically and immediately vest in and belong to the person who succeeds the Aga Khan without any probate, succession certificate, letters of administration, court order, registration of any instrument, transfer, mutation or any other legal or administrative formality whatsoever.

(2) The validity of such vesting and transfer shall not be questioned or challenged in any court or forum, or proceeding by any person, nor shall such vesting and transfer be subject to any inquiry, approval or condition under any law, for the time being in force.

4. **Exception for specific dispositions made by the Aga Khan**.– (1) Notwithstanding anything contained in the Act, the provisions of automatic succession and vesting under section 3 shall not apply to any specific property, which the Aga Khan, by a will, trust deed, gift, directive, or any other instrument executed during his lifetime, specifically disposes of, bequeaths, gifts, or otherwise transfers to any person, entity, or charitable institution other than the succeeding Aga Khan or any property which the Aga Khan informs the Board, in writing, are excluded from the purview of such automatic succession.

(2) Any such disposition, bequest, gift, or transfer made in accordance with sub-section (1) shall take effect in accordance with the will, trust deed, gift, directive or other instrument, and the property so disposed of shall stand excluded from the operation of the Act.

(3) Nothing in this section shall affect the operation of automatic succession provided under the Act.

5. **Official recognition and recording of successor Imam as the owner of the Properties**.– (1) All authorities including but not limited to revenue authorities, municipal bodies, land registries, development authorities, financial institutions, corporate registries, and any other office or authority within the Province of the Punjab shall, on commencement of the Act, mutate all the properties in the name of successor Aga khan and update all records to reflect the successor Aga Khan as the lawful owner of the properties, without further inquiry, proof, or formality.

(2) The contents of the Act shall be circulated by the Board to all the relevant authorities as mentioned in sub-section (1), upon being satisfied that the successor Aga Khan has been duly recognized by the Shia Imami Ismaili Muslims in accordance with their religious and historical traditions.

6. **Exemption from taxes, fees and duties**.– (1) Notwithstanding anything contained in any other law for the time being in force, the transfer by way of succession of the properties from the Aga Khan to his successor, and the vesting of the properties in the successor Aga Khan, shall:

(a) be exempt from stamp duties, registration fees, capital value tax, provincial or local taxes, levies, charges, or any other fiscal imposition, whatsoever; and

(b) not be treated as a transfer for the purposes of taxation or any financial liability under any law relating to property, transfer of property, or revenue records.

(2) No authority shall charge any fee or duty for the mutation, updating or amendment of revenue record or any other record in connection with such transfer or succession.

7. Bar to legal challenge and exclusion of jurisdiction.– (1) No court, tribunal, or authority shall entertain any suit, application, petition, or proceeding challenging or questioning:

(a) succession of properties to the successor Aga Khan;

(b) validity of the transfer to and vesting in the successor Aga Khan of the properties; or

(c) entitlement of the successor Aga Khan to the properties.

(2) No provision of any other law, including but not limited to the Succession Act, 1925 (XXXIX of 1925), the West Pakistan Muslim Personal Law (Shariat) Application Act, 1962 (V of 1962), the Muslim Family Laws Ordinance, 1961 (VIII of 1961), the Punjab Trusts Act 2020 (XXI of 2020), or any law relating to inheritance, gifts, wills, or succession, shall apply to the properties to the extent that they are covered under the Act.

8. Saving.– Nothing in the Act shall affect:

(a) spiritual, religious, and institutional authority of the Aga Khan or the successor Imam with respect to the Shia Imami Ismaili Muslims;

(b) any disposition, transfer, or alienation of any property made by the Aga Khan during his lifetime; and

(c) any private settlement or arrangement made within the family of the Aga Khan or his community in relation to any property not covered by the Act.

9. Power to make rules. – The Government may, by notification in the official Gazette, make rules for carrying out the purposes of the Act.

10. Removal of difficulties. – If any difficulty arises in giving effect to any provision of the Act, the Government may, by order, take such measures as it considers necessary to remove such difficulty.

11. Act to override other laws.– (1) The provisions of the Act shall have effect notwithstanding anything contained in any other law for the time being in force or in any instrument having effect by virtue of any law other than the Act and notwithstanding any decree or order of any court, tribunal, commission or other authority and in the event of any conflict between the provisions of the Act and any other law, the provisions of the Act shall prevail.

(2) Nothing contained in any other law for the time being in force shall apply to any matter regulated by the Act.

12. Transitional application.– (1) Notwithstanding anything contained in the Act or in any other law for the time being in force, all properties, as defined in the Act, which were held, owned, possessed, or controlled by His Highness Prince Karim Aga Khan IV, the 49th Imam of the Shia Imami Ismaili Muslim community, and which are situated within the Province of the Punjab, shall, by succession, be deemed to have vested in and transferred to His Highness Prince Rahim Al-Hussaini Aga Khan, the 50th Imam, on the date of his succession as Imam, in the same manner and to the same extent as if the Act had been in force on that date.

(2) The provisions of sections 3, 4, and 6 shall apply, *mutatis mutandis*, to the updating of all revenue, corporate, and official records to reflect the transfer and succession under sub-section (1).

(3) The exemption from stamp duty, registration fees, and other charges under section 6 shall apply to all transfers, mutations, and changes of records necessary to give effect to the provisions of this section.

(4) No court, authority, or person shall question or challenge the succession, vesting, or transfer referred to in the Act on any ground whatsoever, including lack of probate, non-registration, or absence of mutation prior to the enactment of the Act.

Ch Amer Habib
Secretary General